

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DE'JON MCGIRT, and ENICO ELSIN HOLLOWAY,

Plaintiffs,

-against-

CITY OF NEW YORK; POLICE OFFICER POM
MALIK D. UNDERWOOD (Tax# 959321); SGT
NAJARRO EDWARD (Tax# 945431); NYPD
OFFICERS JOHN and JANE DOE 1 through 10, (the
names John and Jane Doe being fictitious, as the true
names are presently unknown),

Defendants.
-----X

SUMMONS

Jury Trial Demanded

PLAINTIFFS designates
BRONX County as the
place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the PLAINTIFFS' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
May 21, 2024

Anna Berezovski

Anna Berezovski
Of Counsel to
THE LAW OFFICE OF
KATHERINE E. SMITH
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TO:

ZACHARY W. CARTER
Corporation Counsel of the CITY of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER POM MALIK D. UNDERWOOD (Tax# 959321)
SGT NAJARRO EDWARD (Tax# 945431)
257 Alexander Ave
Bronx, NY 10454

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PLAINTIFFS DE'JON MCGIRT and ELSIN HOLLOWAY, by PLAINTIFFS' attorneys,
Anna Berezovski, Esq, and THE LAW OFFICE OF KATHERINE E. SMITH, P.C., complaining
of the defendants, respectfully alleges as follows:

PARTIES

1. PLAINTIFF DE'JON MCGIRT has been at all relevant times a resident of
BRONX County in the CITY and State of New York.
2. PLAINTIFF ELSIN HOLLOWAY has been at all relevant times a resident of
BRONX County in the CITY and State of New York.
3. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.
4. Defendant, THE CITY OF NEW YORK, maintains the New York CITY Police
Department ("NYPD"), duly authorized public authorities and/or police departments, authorized
to perform all functions of a police department as per the applicable sections of the New York
State Criminal Procedure Law, acting under the direction and supervision of the aforementioned

COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

municipal corporation, The CITY of New York. The NYPD is responsible for the appointment, training, supervision, promotion and discipline of officers and supervisory security officers and staff, including the individually named defendants herein.

5. At all times relevant, DEFENDANTS POLICE OFFICER POM MALIK D. UNDERWOOD (Tax# 959321), SGT NAJARRO EDWARD (Tax# 945431), and NYPD Defendants John & Jane Doe 1 through 10 (“DOE Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFFS don’t not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

9. PLAINTIFFS have complied with all conditions precedent to suit.

STATEMENT OF FACTS

10. On or about January 14, 2023, at or around 3:20 am, PLAINTIFFS were lawfully within the vicinity of 356 East 149th Street, Bronx, New York, when several unidentified New York City Police Officers, including defendants PO POM MALIK D. UNDERWOOD (Shield No. 19935), SGT NAJARRO EDWARD (Tax# 945431), and the DOE Defendants (collectively

"defendants"), approached PLAINTIFFS and unlawfully searched PLAINTIFFS and the above mentioned vicinity, falsely arrested, falsely imprisoned, assaulted and battered, used excessive force upon, subjected PLAINTIFFS to malicious abuse of process, malicious prosecution, denial of access to a fair trial, inter alia.

11. Specifically, on the above date and time, PLAINTIFFS were lawfully parked at the above mentioned vicinity, when the defendants NYPD officers, including defendants POLICE OFFICER POM MALIK D. UNDERWOOD (Tax# 959321), SGT NAJARRO EDWARD (Tax# 945431), and the DOE Defendants, unlawfully searched PLAINTIFFS, and the vehicle in which PLAINTIFFS were within despite the fact that they had no reasonable suspicion or other lawful basis to do so.

12. Defendants POLICE OFFICER POM MALIK D. UNDERWOOD (Tax# 959321), SGT NAJARRO EDWARD (Tax# 945431), and the DOE Defendants recovered no contraband from PLAINTIFFS' person or from within the vehicle. .

13. Notwithstanding the fact that Defendants POLICE OFFICER POM MALIK D. UNDERWOOD (Tax# 959321), SGT NAJARRO EDWARD (Tax# 945431), and the DOE Defendants lacked probable cause or reasonable suspicion to believe that PLAINTIFFS had committed any crimes or offenses, defendants officers placed PLAINTIFFS into handcuffs and under arrest.

14. In so doing, defendants POLICE OFFICER POM MALIK D. UNDERWOOD (Tax# 959321), SGT NAJARRO EDWARD (Tax# 945431), and the DOE Defendants, without cause, used excessive force and otherwise assaulted and battered PLAINTIFFS. Specifically, the defendants applied excessively tight handcuffs, which caused injuries to PLAINTIFFS' wrists.

15. PLAINTIFFS were subsequently transported to the police precinct. At the

precinct, the officers falsely informed employees of the Bronx County District Attorney's Office ("DA's office") that they had observed PLAINTIFFS commit various crimes/offenses. Neither PO POM MALIK D. UNDERWOOD (Shield No. 19935), nor SGT NAJARRO EDWARD (Tax# 945431), and the DOE Defendants observed PLAINTIFFS violate any laws/ordinances.

16. The allegations made by defendants PO POM MALIK D. UNDERWOOD (Shield No. 19935), SGT NAJARRO EDWARD (Tax# 945431), and the DOE Defendants to the DA's office were false, and the defendants knew them to be false at the time the defendants made the allegations. The defendants then forwarded these false allegations to the DA's office in order to justify the unlawful arrest of PLAINTIFFS and to persuade the DA's office to commence and/or continue the criminal prosecution of PLAINTIFFS.

17. The defendants knew and understood that the DA's office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFFS. Defendants were aware that the DA's office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's office were truthful in all material respects.

18. PLAINTIFF DE'JON MCGIRT remained in custody for an extended period of time prior to being released from custody after his arrest was void.

19. PLAINTIFF ENICO ELSIN HOLLOWAY remained in custody for an extended period of time prior to being released from custody after his arrest was void.

20. PLAINTIFFS suffered damage as a result of defendants' actions. PLAINTIFFS were deprived of liberty, suffered physical, emotional, and mental trauma, emotional distress, mental anguish, fear, pain, bodily injuries, anxiety, shock, embarrassment, humiliation, and reputational damage.

CLAIM ONE
Under State and Federal Law
UNREASONABLE FORCE

21. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

22. The defendants violated the Fourth and Fourteenth Amendments and New York State Law because they used unreasonable, excessive, and unjustified force on PLAINTIFFS.

23. As a direct and proximate result of this unlawful conduct, PLAINTIFFS sustained the damages hereinbefore alleged.

CLAIM TWO
Under State Law
NEGLIGENCE

24. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

25. Defendant CITY of New York for the oversight of its agents, servants, and/or employees, who include officials and staff at NYC NYPD, including the individually named defendants and DOE Defendants.

26. Furthermore, the CITY is liable for damages caused by the negligent or wrongful acts of its agents, servants, and/or employees acting within the scope of their employment.

27. NYPD officials and staff have a duty to protect the civilian population in general, and PLAINTIFFS in particular.

28. Defendants, including CITY and the individually named defendants breached their duty to protect the PLAINTIFFS from harm by failing to take any actions to protect PLAINTIFFS.

29. As a result of these actions and inactions by the NYPD officers, including the individually named defendants and DOE Defendants, PLAINTIFFS suffered and is still experiencing pain and permanent injuries, shock, fright and loss of freedom.

CLAIM THREE
Under State Law
ASSAULT and BATTERY

30. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

31. The individual defendants placed a mark on PLAINTIFFS, which directly placed PLAINTIFFS in apprehension of imminent harmful and offensive bodily contact.

32. Defendants' aforementioned actions caused PLAINTIFFS to be subjected to unauthorized physical contact that resulted in injury.

33. Defendant NYPD officers did so without privilege or consent from PLAINTIFFS.

34. As a result of defendants' conduct, PLAINTIFFS suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM FOUR
Under State Law
INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS

35. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

36. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

37. The aforementioned conduct was committed by the Individual Defendants while acting within the scope of their employment by defendant CITY.

38. The aforementioned conduct was committed by Individual Defendants while acting in furtherance of their employment by defendant CITY.

39. The Defendant employer CITY is responsible for the wrongdoings of their employees and agents under the doctrine of *respondeat superior*.

40. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to PLAINTIFFS.

41. As a result of these actions and inactions of the Defendants, PLAINTIFFS suffered damages alleged herein.

CLAIM FIVE
Under State Law
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

42. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

43. By reason of the foregoing, each Defendant was negligent in committing conduct that inflicted emotional distress upon PLAINTIFFS.

44. The negligent infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties.

45. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon PLAINTIFFS.

46. The Defendant employer CITY is responsible for the wrongdoings of their employees and agents under the doctrine of *respondeat superior*.

47. As a direct and proximate result of the misconduct and abuse of authority detailed above, PLAINTIFFS sustained the damages hereinbefore alleged.

CLAIM SIX
Under Federal Law

DELIBERATE INDIFFERENCE TO SAFETY/MEDICAL NEEDS

48. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

49. The Individual Defendants were aware of a risk to PLAINTIFFS' safety and a need for medical care and failed to act in deliberate indifference to PLAINTIFFS' needs.

50. Specifically, they knew of a specific threat to her safety and refused to address that threat, ignored that threat, and as a result PLAINTIFFS were injured.

51. Accordingly, defendants violated the Fourth, Fourteenth, and Eighth amendments because they acted with deliberate indifference to PLAINTIFFS' medical needs and safety.

52. As a direct and proximate result of this unlawful conduct, PLAINTIFFS sustained the damages hereinbefore alleged.

CLAIM SEVEN
Under Federal Law
FAILURE TO INTERVENE

53. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

54. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

55. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

56. As a direct and proximate result of this unlawful conduct, PLAINTIFFS sustained the damages hereinbefore alleged.

57. PLAINTIFFS repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

CLAIM EIGHT
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

58. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

59. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

60. All of the aforementioned acts deprived PLAINTIFFS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

61. The acts complained of were carried out by the aforementioned individual defendants in their capacities as NYPD officers with all the actual and/or apparent authority attendant thereto.

62. The acts complained of were carried out by the aforementioned individual defendants in their capacities as NYPD officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY of New York, the New York Police Department, and the all under the supervision of ranking officers of said department.

63. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM NINE
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

64. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

65. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

66. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

67. Due to the negligence of the defendants as set forth above, PLAINTIFFS suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation, shock, fright, and loss of freedom.

CLAIM TEN
Under Federal Law
MUNICIPAL LIABILITY

68. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

69. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

70. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, Newy York City Police Department, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures; and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

71. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, New York City Police Department, constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFFS.

72. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, New York City Police Department, were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFFS as alleged herein.

73. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, New York City Police Department, were the moving force behind the constitutional violations suffered by the PLAINTIFFS as alleged herein.

74. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFFS' constitutional rights.

75. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate NYPD officers, and were directly responsible for the violation of the PLAINTIFFS' constitutional rights.

76. The acts complained of deprived the PLAINTIFFS of her right:

- A. Not to be deprived of liberty without due process of law;

- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon her; and
- D. To receive equal protection under the law.

CLAIM ELEVEN

Under N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807

77. PLAINTIFFS repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

78. PLAINTIFFS' right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

79. The CITY of New York is liable as the employer of the Individual Defendants under New York CITY Administrative Code § 8-803(b).

80. Qualified immunity is no defense to this claim.

81. As a result of the above unconstitutional conduct, PLAINTIFFS was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

82. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

CLAIM TWELVE

Under State and Federal Law

UNLAWFUL STOP, SEARCH, AND SEIZURE

83. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

84. As a result of the aforesaid conduct by defendants, PLAINTIFFS' person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM THIRTEEN
Under State and Federal Law
FALSE ARREST

85. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

86. Defendant police officers arrested PLAINTIFFS in the absence of probable cause and without a valid warrant.

87. As a result of the aforesaid conduct by defendants, PLAINTIFFS was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFFS' rights.

CLAIM FOURTEEN
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

88. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

89. The individual defendants issued legal process to place PLAINTIFFS under arrest.

90. The Municipal Defendants arrested PLAINTIFFS in order to obtain collateral objectives outside the legitimate ends of the legal process.

91. The Municipal Defendants acted with intent to do harm to PLAINTIFFS without excuse or justification.

92. As a direct and proximate result of this unlawful conduct, PLAINTIFFS sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock,

fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FIFTEEN
Under State and Federal Law
MALICIOUS PROSECUTION

93. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

94. By their conduct, as described herein, defendants are liable to PLAINTIFFS for having committed malicious prosecution under the laws of the State of New York.

95. Defendants maliciously commenced criminal proceeding against PLAINTIFFS, falsely accusing PLAINTIFFS of violating the law.

96. Defendants falsely and without probable cause charged PLAINTIFFS with violations of the laws of the State of New York.

97. The commencement and continuation of the criminal proceedings against PLAINTIFFS was malicious and without probable cause.

98. All charges were terminated in PLAINTIFFS' favor.

99. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFFS. Defendant CITY of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

100. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFFS sustained the damages alleged herein.

CLAIM SIXTEEN
Under Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

101. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

102. Defendants created false evidence against PLAINTIFFS.

103. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

104. Defendants misled the prosecutors by creating false evidence against PLAINTIFFS and thereafter providing false testimony throughout the criminal proceedings.

105. In creating false evidence against PLAINTIFFS, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFFS' constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

106. As a result of the foregoing, PLAINTIFFS' liberty was restricted for an extended period of time, was put in fear for PLAINTIFFS'S safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

WHEREFORE, PLAINTIFFS respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
May 21, 2024

Anna Berezovski

Anna Berezovski
Of Counsel to
THE LAW OFFICE OF
KATHERINE E. SMITH
233 Broadway, Ste. 900
New York, New York 10279
Tel/ Fax: 347-470-3707
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Attorney for PLAINTIFFS

ATTORNEY'S VERIFICATION

ANNA BEREZOVSKI, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

I am *of Counsel* to THE LAW OFFICE OF KATHERINE E. SMITH, PC, attorneys for PLAINTIFFS DE'JON MCGIRT and ENICO ELSIN HOLLOWAY, in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information is investigation and records in the file.

The reason why the verification is made by the deponent and not by the PLAINTIFFS is that the PLAINTIFFS is not within the county wherein the deponent maintains her office.

I affirm this 21st day of May 2024, under the penalties of perjury under the laws of the State of New York, which may include a fine or imprisonment under penalty of perjury, that the foregoing is true and correct, and I understand that this document may be filed in an action or proceeding in a court of law.

Dated: New York, New York
 May 21, 2024



Anna Berezovski

